

File No.: 11.17.001.010.260

BY ELECTRONIC CORRESPONDENCE

August 31, 2023

Decision regarding the exercise of the right of access under Article 15 of GDPR 2016/679 to the International School of Paphos

Based on the duties and powers conferred upon me by Article 57(1)(f) of Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, I examined a complaint submitted to my Office on December 12, 2022, regarding the right of access under Article 15 of GDPR 2016/679 by XXXXX (hereinafter referred to as the Complainant) to her personal data contained in documents of the International School of Paphos (hereinafter referred to as the Respondent).

2. On June 13, 2023, I identified a prima facie violation of Article 12(4) of GDPR 2016/679 by the Respondent. My conclusion was based on the fact that, as revealed by the investigation of the complaint, the Respondent did not adequately and satisfactorily inform the Complainant of the reasons for which it did not act and did not fully satisfy her request from the outset, as well as regarding the possibility of lodging a complaint with a Supervisory Authority and the right to seek judicial remedy.

2.1 I reiterate and adopt the facts of the case, legal basis, reasoning, and conclusion of my Decision dated June 13, 2023. I emphasize that according to the provisions of Article 12(4) of GDPR 2016/679 and the Guidelines 1/2022 of the European Data Protection Board (EDPB), the data controller must act within one month of receiving the request from the data subject and inform them of the reasons for not acting, the possibility of lodging a complaint with a supervisory authority, and the right to seek judicial remedy.

2.2 In the present case, the Complainant was not asked to specify her request. What was communicated to her in the response letter dated December 12, 2022, was that the remainder of her request could not be satisfied either because it did not pertain to her personal data or because it concerned the processing of personal data that is exempt from the right of access. ("The remaining of your request cannot be met as either do not amount to your personal data or result of processing of personal data which are excluded from access right requests.").

2.3 There was no further information provided to the Complainant regarding the reasons for not satisfying the remaining requests that were pending, as well as regarding the provisions of Article 12(4). I consider the above response to be incomplete and unsatisfactory. Additional explanations were only provided after the filing of the present complaint and within the framework of its investigation.

2.4 The Respondent was requested to state the reasons why it believes that no corrective measure or administrative sanction should be imposed within 3 weeks from the receipt of the prima facie Decision dated June 13, 2023.

2.5 The Respondent replied on July 3, 2023, stating among other things, the following:

- (1) They have been activated since 2017 with the hiring of external consultants for the proper implementation of the provisions of GDPR 2016/679 in the workplace.
- (2) They believe that they have provided the Complainant from the outset with all the documents that could be given to her, without affecting the rights of others.
- (3) They believe that they have informed the Complainant of the reasons why they could not fully satisfy her request in the letter sent to her on December 12, 2022.
- (4) The Complainant did not express any concerns when she received their response. Up to that point, the Respondent was trying to satisfy her request to the extent possible, and after 12 minutes, they received notification that a complaint had been filed.
- (5) The Complainant had been informed of her rights, specifically that she could lodge a complaint with

a supervisory authority and seek judicial remedy, through the Policy Statement as well as the Employee Policy Statement that had already been circulated by the Respondent. All their employees have received training regarding their content and their rights as data subjects. Furthermore, the Complainant was well aware of the procedures and her rights as she had an active role in the Respondent as an intermediary between her and their external consultants regarding GDPR 2016/679, in the development and drafting of the Respondent's Policies and procedures for personal data, held the position of XXXXX, and had been trained accordingly through relevant training programs that the Respondent had sent her to attend.

(6) They believe that the Respondent has complied with the letter and spirit of GDPR 2016/679 and it would be unfair to impose a financial penalty on them. In the event that a gap is identified regarding the process that...

3

It follows that she believes a warning would be sufficient, giving the Respondent the opportunity to take corrective measures.

3. I remind that the data controller has the burden to explain to the data subject why it considers the request to be "manifestly unfounded" in the event that it invokes the provisions of Article 12(5) of GDPR 2016/679, while according to the provisions of Article 12(4) of GDPR 2016/679 and the relevant Guidelines 1/2022, if the data controller refuses to act to satisfy a request for access in whole or in part, it must inform the data subject without delay and within one month of receiving their request, explaining the reasons, the right to appeal to the Supervisory Authority, and the right to seek judicial remedy (see paragraph 3.10 of my Decision dated June 13, 2023).

4. Even if I accept that the Complainant was aware of her rights regarding the submission of a complaint to a supervisory authority and regarding the right to seek judicial remedy, due to the role and training she received in relation to the Respondent of the complaint, I do not consider that the reasons mentioned by the Complainant for the non-satisfaction of her request were satisfactory, to the extent that she could understand them even with the training she had received on personal data issues. Hence, one of the reasons for the Complainant's complaint was that the Respondent of the complaint failed to provide details and/or explain the reasons for the refusal to satisfy her access request for each requested item. I agree with this position of the Complainant. The simple reference "The remaining of your request cannot be met as either do not amount to your personal data or result of processing of personal data which are excluded from access right requests" does not meet the exceptions that a data controller may invoke for the non-satisfaction of a data subject's access right, nor is it sufficiently satisfactory both in relation to its scope and in relation to its content. A sufficient explanation was only provided after the filing of this Complaint (e.g., see Article 12(5), Article 15(4), and Recital (63)). If the Respondent of the complaint had sufficiently explained why it could not fully satisfy the request, this current process might have been avoided.

4.1 Therefore, I do not share the view that the Respondent of the complaint still holds, that it has sufficiently explained to the data subject the reason for the non-satisfaction of all requested items.

5. Having regard to the above, as well as the adoption of what I have mentioned in my Decision dated June 13, 2023, my conclusion is that the Respondent of the complaint has violated the provisions of Article 12(4) of GDPR 2016/679, since it did not inform the Complainant of the reasons for which it did not act and did not fully satisfy her request from the outset.

5.1 Having regard to the powers conferred upon me by Article 58(2)(b) of GDPR 2016/679, as well as the willingness of the Respondent of the complaint, if gaps are identified, to take corrective measures, I have decided not to impose any administrative fine on the Respondent of the complaint. However, I issue the administrative sanction of a Warning for the violation of the provisions of Article 12(4) of GDPR 2016/679, since a Warning, as requested by the Respondent of the complaint, could only be imposed if I found that intended processing actions might violate the provisions of GDPR 2016/679. In this case, I have identified that there was indeed a violation of the provisions of GDPR 2016/679 (see Article 58(2)(b) of GDPR 2016/679).

6. This Decision may be considered as a precedent in the event of a recurrence of the same violation by the Respondent of the complaint.

Peace Loizidou Nikolaidou
Commissioner for Personal Data Protection